

## 25SMCV00847 25SMCV00847

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-19

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Case Number: 25SMCV00847 Hearing Date: August 19, 2026 Dept: M

CASE NAME: Hao v. Subaru of America Inc.

CASE NO.: 25SMCV00847

MOTION: Motion

to Deem Request for Admissions Admitted

HEARING DATE: 8/19/2026

Legal

Standard

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2023.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

ANALYSIS

Defendant Subaru of America, Inc. moves for the following orders:

(1) that the truth of each and every matter specified within the First Set or Requests for Admissions Propounded by Defendant Subaru of America, Inc. to Plaintiff Shumming Hao (the "RFAs (Set One)"), served November 7, 2025, be deemed admitted;

(2) that the truth of each and every matter specified within the Second Set or Requests for Admissions Propounded by Defendant Subaru of America, Inc. to Plaintiff Shumming Hao (the "RFAs (Set Two)"), served April 28, 2026, be deemed admitted; and

(3) awarding monetary sanctions against plaintiff Shumming Hao ("Plaintiff") and/or Plaintiff's counsel of record, Kyle Tracy, Esq., Ezra Ryu, Esq. and Astrid Souto, Esq., of American Lemon Law Group, LLP, jointly and severally, in the sum of \$1,775.00.

The motion

is substantively moot. Defendant moved to deem admissions because Plaintiff's initial responses were not verified. (Kreshek Decl., ¶¶ 5, 7.) "Unsworn responses are tantamount to no responses at all." (Appleton v. Superior Ct., (1988) 206 Cal. App. 3d 632, 636.) After Defendant brought the motion, Plaintiff provided the required verifications on June 22, 2026. (Ryu Decl., ¶¶ 3-4.)

Plaintiff demonstrates that it was counsel's oversight which resulted in the lack of verification. Thus, counsel's conduct necessitated the motion. Monetary sanctions are mandatory, without exception. (CCP § 2033.280.) Accordingly, sanctions are imposed against Plaintiff's counsel of record in the noticed amount of \$1,775.00. Sanctions are payable to Defendant's counsel of record within 30 days.